

FEDERAL MARITIME COMMISSION

DOCKET NO. 23-08

**MSC MEDITERRANEAN SHIPPING COMPANY, S.A. – POSSIBLE VIOLATIONS OF
THE SHIPPING ACT, 46 U.S.C. §§ 41102(c), 40501, and 41104(a)(2)(A)**

**RESPONDENT’S MOTION FOR
CONFIDENTIAL TREATMENT OF CERTAIN MATERIALS**

Pursuant to 46 C.F.R. §§502.141(j)(1) and 502.5(b) and in compliance with the Presiding Officer’s additional instructions issued on August 15, 2023, Respondent MSC Mediterranean Shipping Company, S.A. (“MSC”), hereby moves for confidential treatment of certain materials included with or referred to in MSC’s Reply to Bureau of Enforcement, Investigations, and Compliance’s (“BEIC”) Opening Brief (the “Reply”), Responses to BEIC’s Proposed Findings of Fact, and Respondent’s Appendix.

On November 14, 2023, the parties in this proceeding agreed and stipulated between themselves with respect to treatment of confidential documents and information obtained during discovery that is not filed with the Commission. A courtesy copy of the confidentiality agreement between the parties was provided by BEIC as Appendix A to its Motion for Confidential Treatment filed on April 3, 2024.

In its Reply, Responses to BEIC’s Proposed Findings of Fact and Appendix, MSC produces and/or refers to materials that it or third parties responding to subpoenas designated as confidential. Per the Presiding Officer’s instructions, these materials must be accompanied by a motion justifying confidential treatment, and MSC makes this filing in compliance with these instructions. The below table lists confidential materials produced in connection with the Reply.

Bates Range	Description	Classification Requested for	Basis for Confidentiality Request
N/A	Name of non-party MSC customer	Material Indicated in Reply Brief at 13	Per agreement, names non-party MSC customer
N/A	MSC Policy for Billing	Material Indicated in Reply Brief at 2, 3, 5, and 13	Per agreement, refers to specific MSC-internal policy
N/A	Names of non-party MSC customers	Material indicated throughout replies to BEIC's PFFs; in Respondent's Appendix	Per agreement, names non-party MSC customer
RA0085-88	MSC response to BEIC's Third Interrogatories, Exhibit B	Entire Document	Per agreement, names non-party MSC customer
MSC0000374-76 / RA0002-0005	Email with non-party	Non-party names	Per agreement, names non-party MSC customer
MSC0000669-81 / RA0006-18	Email with non-party	Non-party names	Per agreement, names non-party MSC customer
JSC000001-05 / RA0069-73	Terms and Conditions between non-party and John S. Connor, produced by John S. Connor	Entire Document; Material indicated in Reply Brief at 11-12	Per agreement, designated by John S. Connor
JSC002277-78 / RA0075-80 and RA0082-83	Email produced by John S. Connor	Entire Document	Per agreement, designated by John S. Connor

For the foregoing reasons, Respondents request that the material so designated in Respondent's Appendix be kept confidential.

Respectfully submitted,

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May 3, 2024

CERTIFICATE OF SERVICE

I hereby certify that a copy of the foregoing was served upon the attorneys in the Office of Enforcement identified below by delivering the aforementioned document via email transmission this 3rd day of May, 2024.

/s/Wayne Rohde
Wayne Rohde

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